

COUNCIL DECISION 2013/517/CFSP

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COUNCIL DECISION 2013/517/CFSP

of 21 October 2013

on the Union support for the activities of the International Atomic Energy Agency in the areas of nuclear security and verification and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction

THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on European Union, and in particular Article 26(2) and Article 31(1) thereof,
Having regard to the proposal from the High Representative of the Union for Foreign Affairs and Security Policy,

Whereas:

(1)

On 12 December 2003, the European Council adopted the EU Strategy against Proliferation of Weapons of Mass Destruction ('the Strategy'), Chapter III of which contains a list of measures that need to be taken both within the Union and in third countries to combat such proliferation.

(2)

The Union is actively implementing the Strategy and is giving effect to the measures listed in Chapter III thereof, in particular by releasing financial resources to support specific projects conducted by multilateral institutions, such as the International Atomic Energy Agency (IAEA).

(3)

On 17 November 2003, the Council adopted Common Position 2003/805/CFSP on the universalisation and reinforcement of multilateral agreements in the field of non-proliferation of weapons of mass destruction and means of delivery (1). That Common Position calls, inter alia, for the promotion of the conclusion of the IAEA Comprehensive Safeguards Agreements and Additional Protocols and commits the Union to working towards making the IAEA Comprehensive Safeguards Agreements and Additional Protocols the standard for the IAEA verification system.

(4)

On 17 May 2004, the Council adopted Joint Action 2004/495/CFSP on support for IAEA activities under its Nuclear Security Programme and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (2).

(5)

On 18 July 2005, the Council adopted Joint Action 2005/574/CFSP on support for IAEA activities in the areas of nuclear security and verification and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (3).

(6)

On 12 June 2006, the Council adopted Joint Action 2006/418/CFSP on support for IAEA activities in the areas of nuclear security and verification and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (4).

(7)

On 14 April 2008, the Council adopted Joint Action 2008/314/CFSP on support for IAEA activities in the areas of nuclear security and verification and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (5).

(8)

On 27 September 2010, the Council adopted Decision 2010/585/CFSP on support for IAEA activities in the areas of nuclear security and verification and in the framework of the implementation of the EU Strategy against Proliferation of Weapons of Mass Destruction (6).

(9)

The strengthening of the control of high-activity radioactive sources in accordance with the G-8 statement and Action Plan on securing radioactive sources, adopted at the 2003 Evian Summit, remains an important objective for the Union, which will be pursued through outreach to third countries.

(10)

On 8 July 2005, the States Parties and the European Atomic Energy Community agreed by consensus to amend the Convention on the Physical Protection of Nuclear Material (CPPNM) with a view to expanding its scope to encompass nuclear material and facilities in peaceful domestic use and storage, as well as in transport, and to oblige States Parties to make violations subject to criminal sanctions.

(11)

On 7 July 2007, the International Convention for the Suppression of Acts of Nuclear Terrorism entered into force. It requires States Parties to enact legislation to criminalise the offences set out in the Convention.

(12)

The IAEA pursues the same objectives as those set out in recitals 3 to 11 of this Decision. This is done through the implementation of its Nuclear Security Plan which is financed entirely through voluntary contributions to the IAEA Nuclear Security Fund.

(13)

The Union participates in the Nuclear Security Summit process and is committed to further enhancing its efforts which aim to strengthen nuclear security and to assist third countries in that regard. The Union welcomes recent steps to strengthen the IAEA Nuclear Security Programme as well as the International Conference on Nuclear Security hosted by the IAEA on 1-5 July 2013. The Union aims to maintain the sustainability and effectiveness of the implementation of previous Joint Actions and Council Decisions in support of the IAEA Nuclear Security Plans and is committed to providing further support in view of the adoption of the IAEA Nuclear Security Plan 2014-2017. Close coordination with the EU Chemical, Biological, Radiological and Nuclear (CBRN) Centres of Excellence Initiative, as well as other initiatives and programmes, will be undertaken to avoid duplication and maximise cost-effectiveness and continued risk reduction.

(14)

The technical implementation of this Decision should be entrusted to the IAEA which, on the basis of its longstanding and broadly-recognised expertise in the area of nuclear security, could significantly strengthen relevant capabilities in the target countries. The projects as supported by the Union can only be financed through voluntary contributions to the IAEA Nuclear Security Fund. Such contributions to be provided by the Union will be instrumental in enabling the IAEA to play a key role in the area of nuclear security by supporting the efforts of countries to fulfil their nuclear security responsibilities, as also

recognised in the framework of the Nuclear Security Summit process,

HAS ADOPTED THIS DECISION:

Article 1

1. For the purposes of immediate and practical implementation of certain elements of the EU Strategy against Proliferation of Weapons of Mass Destruction, the Union shall support the IAEA's activities in the areas of nuclear security and verification in order to further the following objectives:

(a)

to achieve progress towards the universalisation of international non-proliferation and nuclear security instruments, including IAEA Comprehensive Safeguards Agreements and Additional Protocols;

(b)

to enhance the protection of proliferation-sensitive materials and equipment and the relevant technology, providing legislative and regulatory assistance in the area of nuclear security and safeguards;

(c)

to strengthen the detection of, and response to, illicit trafficking of nuclear and other radioactive materials.

2. The projects of the IAEA, corresponding to measures of the Strategy, aim to:

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ensure the sustainability and effectiveness of support provided through previous Joint Actions and Council Decisions,

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strengthen States' indigenous nuclear security support infrastructures,

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strengthen States' legislative and regulatory frameworks,

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strengthen nuclear security systems and measures for nuclear and other radioactive materials,

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strengthen States' institutional infrastructures and capabilities to deal with nuclear and radioactive materials out of regulatory control,

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support awareness of and strengthen States' response and resilience to cyber-crime impacting nuclear security,

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develop additional laboratory capacity to support evaluation of industrial control and electronic system level technologies used to identify vulnerabilities to nuclear-related cyber-crime, and exploit and increase awareness of such issues, including through participation in regional exchanges, and the utilisation of compensatory or remediation measures.

The selection of recipient States and projects shall be made by the Council on the basis of a comprehensive IAEA evaluation of needs and various other considerations with the aim of ensuring maximum impact of action.

A detailed description of the projects is set out in the Annex.

Article 2

1. The High Representative of the Union for Foreign Affairs and Security Policy (the 'HR') shall be responsible for the implementation of this Decision.

2. The projects referred to in Article 1(2) shall be carried out by the IAEA as Implementing Entity. It shall perform this task under the responsibility of the HR. For this purpose, the HR shall enter into the necessary arrangements with the IAEA.

Article 3

1. The financial reference amount for the implementation of the projects referred to in Article 1(2) shall be EUR 8 050 000.

2. The expenditure financed by the amount set out in paragraph 1 shall be managed in accordance with the procedures and rules applicable to the general budget of the Union.

3. The Commission shall supervise the proper management of the expenditure referred to in paragraph 1. For this purpose, it shall conclude a financing agreement with the IAEA. The financing agreement shall stipulate that the IAEA is to ensure visibility of the Union's contribution, appropriate to its size.

4. The Commission shall endeavour to conclude the financing agreement referred to in paragraph 3 as soon as possible after the entry into force of this Decision. It shall inform the Council of any difficulties in that process and of the date of conclusion of the financing agreement.

Article 4

1. The HR shall report to the Council on the implementation of this Decision on the basis of regular reports prepared by the IAEA. These reports shall form the basis for evaluation by the Council.

2. The Commission shall provide information on the financial aspects of the implementation of the projects referred to in Article 1(2).

Article 5

This Decision shall enter into force on the day of its adoption.

It shall expire 36 months after the date of the conclusion of the financing agreement between the Commission and the IAEA or 12 months after the date of its adoption if no financing agreement has been concluded before that date.

Done at Luxembourg, 21 October 2013.